

23CHCV03024 23CHCV03024

County: los-angeles

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Case Number: 23CHCV03024 Hearing Date: September 2, 2026 Dept: F43

Dept. F43

Hearing Date: 09-02-26

Case # 23CHCV03024, Fumarolo, et
al. v. Ends, et al.

Trial Date: 06-12-28

MOTION TO FILE AND
AMENDED ANSWER

MOVING PARTIES: Defendants Brian Ends and Aiden Ends

RESPONDING PARTIES: Plaintiffs Gianna Fumarolo, by and through her
guardian ad litem Michel Fumarolo, Jason Fumarolo, and Michele Fumarolo

RELIEF REQUESTED

Order granting defendants Brian Ends and
Aiden Ends leave to file an amended answer.

RULING: Motion is denied without prejudice.

SUMMARY OF ACTION

On October 9, 2023, plaintiffs Gianna
Fumarolo, by and through Guardian Ad Litem Michele Fumarolo, Jason Fumarolo,

and Michele Fumarolo (Plaintiffs) filed this personal injury action against defendants Brian Ends, Aiden Ends, Jayden Timmins, Mike Timmins, and RoyAnn Timmins, asserting motor vehicle and negligence causes of action. On August 26, 2023, near Garnet Canyon and Cypress Place in Santa Clarita, CA 91390, defendant Jayden Timmins negligently operated a vehicle owned by and entrusted to her by defendants Brian Ends and Aiden Ends. Defendant Jayden Timmins then caused a collision that resulted in plaintiff Gianna Fumarolo's injuries and damages.

Brian Ends and Aiden Ends (Ends Defendants) filed an answer on August 26, 2024, asserting 17 affirmative defenses.

The court recently consolidated this matter with case numbers 26CHCV00687 and 26CHCV00890.

On July 10, 2026, the Ends Defendants filed the instant motion to file an amended answer. Plaintiffs filed an opposition on August 20, 2026. No reply was filed.

ANALYSIS

A. Granting

Leave to File an Amended Pleading (Code Civ. Proc., §§ 473, subd. (a)(1), 576)

“The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer.

The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code.”

(Code Civ. Proc., § 473, subd. (a)(1).)

“Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order.” (Code Civ. Proc., § 576.)

Judicial policy favors resolution of all disputed matters between the parties, and therefore, courts have held that “there is a strong

policy in favor of liberal allowance of amendments.” (Mesler v. Bragg Management Co. (1985) 39 Cal.3d 290, 296-297.) “If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” (Morgan v. Superior Court (1959) 172 Cal.App.2d 527, 530, citations omitted.)

Motions for leave to amend must also meet certain procedural requirements. California Rules of Court, rule 3.1324(a) requires the motion to “(1) Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and (3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.”

Additionally, Rule 3.1324(b) requires that the declaration in support of a motion for leave to file an amended complaint must state: “(1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier.”

The Ends Defendants seek to add a general denial and six affirmative defenses in their proposed amended answer: no permission, lack of notice and entrustment, no duty, lack of a special relationship, no causation, and criminal conduct and lack of foreseeability.

The purpose of the amendment is to be consistent with the Ends Defendants’ answer to defendant Jayden Timmins’ cross-complaint. The Ends Defendants present the declaration of attorney Jeffrey A. Hacker, an email thread between counsel, and a copy of the proposed amended complaint.

(Declaration of Jeffrey Hacker, Exh. A, B.)

1. Rule 3.1324(a) and (b)

The court has reviewed the declaration, notice of motion, supporting exhibits, and the memorandum of points and authorities and finds

that the motion fails to comply with Rule 3.1324(a). Although the amended pleading is attached to the Hacker declaration, neither the motion, notice of motion, nor the Hacker declaration states the proposed allegations that were added.

The motion also fails to comply with Rule 3.1324(b) because the Hacker declaration does not when the facts giving rise to the amendment were discovered. Attorney Hacker claims significant discovery has occurred in this matter, including several depositions. (Hacker Decl. ¶¶ 3-4.) Furthermore, the defendant Jayden Timmins filed a cross-complaint for indemnity against the Ends Defendants, and the Ends Defendants wish to conform their amended answer in this matter to conform to their answer to the Timmins cross-complaint. (Id. ¶ 5.)

Therefore, the Ends Defendants do not comply with California Rules of Court, rule 3.1324(a)-(b).

2. Prejudice

The Ends Defendants assert the amended answer will cause no prejudice to Plaintiffs. (Mot. at pp. 3:23-4:5.) In opposition, Plaintiffs claim they will be prejudiced because they will have to conduct additional discovery to refute the purported affirmative defenses.

If the party seeking the amendment has been “dilatory,” and the delay has prejudiced the opposing party, the judge has discretion to deny leave to amend. (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2020) [Weil & Brown], ¶ 6:655, citations omitted.) “Prejudice exists where the amendment would result in a delay of trial, along with loss of critical evidence, added costs of preparation, increased burden of discovery.” (Id., at ¶ 6:656, citations omitted.) However, “the fact that the amendment involves a change in legal theory which would make admissible evidence damaging to the opposing party is not the kind of prejudice the court will consider.” (Id.) Absent prejudice, any claimed delay alone is not grounds for denial. (Id., at ¶ 6:653 [citing Higgins v. Del Faro (1981) 123 Cal.App.3d 558, 564-565].) “Even if some prejudice is

shown, the judge may still permit the amendment but impose conditions, as the Court is authorized to grant leave 'on such terms as may be proper.'" (Weil & Brown, supra, at ¶ 6:663, citation omitted.)

Without knowing what discovery facts gave rise to the amendment and when the Ends Defendants discovered the facts giving rise to the amendment, the court cannot determine whether further discovery is necessary to address Plaintiffs' response to the affirmative defenses. Considering the court has consolidated multiple related cases, continued trial to June 12, 2028, and the parties do not indicate discovery has closed, the court does not find the amendment would prejudice Plaintiffs.

However, because the motion does not comply with Rule 3.1324(a)-(b), the court denies the Ends Defendants' motion without prejudice.

CONCLUSION and ORDER

Motion for leave to file and amended answer is denied without prejudice.

Brian Ends and Aiden Ends to give notice.